

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SHARON STERLING,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN FRAPPIER, SERGEANT ROBERT
MORTENSEN, SERGEANT CUCE, POLICE OFFICER
CUMMINGS, POLICE OFFICER SANDRO
CHIARLITTI, POLICE OFFICER McDevitt, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

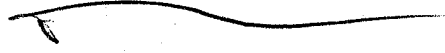
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 11, 2014

Yours, etc.



JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Police Officer Stephen Frappier, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002
Sergeant Robert Mortensen, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002
Sergeant Cuce, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002
Police Officer Cummings, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002
Police Officer Sandro Chiarlitti, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002
Police Officer McDevitt, 7th Precinct, 19 ½ Pitt Street, NY, NY, 10002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
SHARON STERLING,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN FRAPPIER, SERGEANT ROBERT
MORTENSEN, SERGEANT CUCE, POLICE OFFICER
CUMMINGS, POLICE OFFICER SANDRO
CHIARLITTI, POLICE OFFICER McDevitt, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, SHARON STERLING, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to
the United States Constitution, and by the common law and the laws of the State of New York.
On March 8, 2013, at approximately 5:30 a.m., plaintiff, Sharon Sterling, while lawfully inside
of her nephew's apartment, located at 240 Madison Street, Apartment 11D, New York, New
York, was subject to an unlawful search, seizure, detention, false imprisonment and false arrest
by the defendant New York City police officers. Thereafter, while at the 7th Precinct, plaintiff
was subjected to an unconstitutional search by the defendant New York City police officers.
Plaintiff was deprived of her constitutional and common law rights when the individual
defendants unlawfully searched, confined, caused the unjustifiable arrest of, and unlawfully
searched plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United
States Constitution.

PARTIES

2. Plaintiff SHARON STERLING is a resident of the County of Kings, State of New York.

3. POLICE OFFICER STEPHEN FRAPPIER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER STEPHEN FRAPPIER, was at all times relevant herein assigned to the 7th Precinct.

5. POLICE OFFICER STEPHEN FRAPPIER is being sued in his individual and official capacity.

6. SERGEANT ROBERT MORTENSEN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT ROBERT MORTENSEN, is and was at all times relevant herein, assigned to the 7th Precinct.

8. SERGEANT ROBERT MORTENSEN is being sued in his individual and official capacity.

9. SERGEANT CUCE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT CUCE, is and was at all times relevant herein, assigned to the 7th Precinct.

11. SERGEANT CUCE is being sued in his individual and official capacity.

12. POLICE OFFICER CUMMINGS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER CUMMINGS, is and was at all times relevant herein, assigned to the 7th Precinct.

14. POLICE OFFICER CUMMINGS is being sued in his individual and official capacity.

15. POLICE OFFICER SANDRO CHIARLITTI, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER SANDRO CHIARLITTI, is and was at all times relevant herein, assigned to the 7th Precinct.

17. POLICE OFFICER SANDRO CHIARLITTI is being sued in his individual and official capacity.

18. POLICE OFFICER McDevitt, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER McDevitt, is and was at all times relevant herein, assigned to the 7th Precinct.

20. POLICE OFFICER McDevitt is being sued in his individual and official capacity

21. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

25. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. On March 8, 2013, at approximately 5:30 a.m., plaintiff was lawfully present inside of her nephew's apartment located at 240 Madison Street, Apt. 11D, New York, New York, when the individually named defendants forcefully and unlawfully entered the apartment without probable cause or any legal justification.

29. Plaintiff slept in an unused bedroom of the apartment the night before because there was a snow storm predicted to hit New York City on the morning of March 8, 2013, the school plaintiff worked at was located close to the apartment, and plaintiff thought it would be much easier to get to work in the snow from the apartment located at 240 Madison Street than plaintiff's apartment which is located in Brooklyn, New York.

30. Upon unlawfully entering the apartment located at 240 Madison Street, Apt. 11D on March 8, 2013 at approximately 5:30 a.m., the defendant police officers screamed at plaintiff in an unreasonable, unnecessary, extremely frightening and threatening manner and ordered her to get on the ground.

31. Plaintiff complied with the defendant police officers' orders, including but not limited to their order to get on the ground.

32. The individually named defendants unlawfully handcuffed plaintiff, without probable cause or any legal justification.

33. The individually named defendants unlawfully searched the entire apartment.

34. At no time were any illegal guns, drugs or contraband found in the bedroom where plaintiff slept the previous night and where plaintiff was located when the police entered the apartment, nor were any illegal drugs, guns, or contraband found on plaintiff's person, or in plaintiff's possession, custody, or control.

35. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

36. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

37. Nevertheless, the individually named defendants handcuffed and falsely arrested plaintiff, without probable cause to arrest her.

38. Defendants transported plaintiff to the 7th precinct against her will for arrest processing.

39. Plaintiff was unlawfully searched at the 7th Precinct.

40. Plaintiff attempted to call her employer to advise the school what occurred, but she could not get through to her employer via telephone.

41. Plaintiff was detained in a holding cell at the precinct until approximately 8:30 p.m. on March 8, 2013 at which time she was released from police custody without being charged with a crime.

42. After the New York County District Attorney's Office had the opportunity to review the factual basis provided by the defendant police officers for arresting plaintiff, it was apparent that the defendants lacked probable cause to arrest plaintiff, and the New York County District Attorney's Office declined to prosecute plaintiff, and thereafter, defendants released plaintiff from police custody at the 7th Precinct.

43. When plaintiff returned to work at her school, the principal of the school spoke with her about the fact that she was arrested and advised plaintiff that she would be suspended from her job. Furthermore, the principal told plaintiff that she may be assigned to another school if and when she was reinstated from the suspension.

44. Plaintiff was suspended from her job as a paraprofessional and placed on unpaid leave beginning on March 15, 2013 as a direct result of her unlawful arrest on March 8, 2013.

45. On April 8, 2013 at 9:00 a.m. plaintiff was forced to attend a humiliating meeting with the principal of her school, Jaqueline Flanagan, to discuss possible disciplinary action against her as a direct result of plaintiff's unlawful arrest. During the meeting negative judgments about plaintiff's character were expressed by school officials, and said character judgments of plaintiff were based completely upon the fact that plaintiff was arrested on March 8, 2013.

46. The other individually named defendant police officers that were present at the scene of the incident failed to intervene to prevent the unlawful search and detention of plaintiff, even though they knew or should have known that plaintiff was unlawfully arrested, without probable cause.

47. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

48. The unlawful search, false arrest, and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic and emotional trauma, as well as damage to plaintiff's professional reputation.

49. Additionally, there is a policy, practice or custom wherein the New York City Police Department, wherein New York City Police Officers unlawfully arrest individuals for

allegedly possessing a controlled substance without first identifying the substance and ensuring it is, in fact, a controlled substance.

50. This policy and practice directly caused the unconstitutional arrest of plaintiff, as the officers did not have any idea about whether plaintiff possessed a controlled substance when they arrested him, and they made baseless assumptions about whether it was likely that there was a controlled substance located in plaintiff's apartment and they were incorrect.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip searched, and falsely arrested and imprisoned, without reasonable suspicion or probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

65. Defendants failed to intervene to prevent the unlawful conduct described herein.

66. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

FIFTH CAUSE OF ACTION

Municipal Liability Under 42 U.S.C. § 1983

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

69. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

70. Additionally, the aforementioned customs, policies, usages, procedures and rules of defendant City of New York and the New York City Police Department, included but were not limited to, unlawfully arresting individuals, without probable cause or legal justification for allegedly possessing a controlled substance, without first identifying the substance at issue, verifying it is a controlled substance, and without even having any factual or objective basis to suspect which controlled substance the officer believes the arrestee possesses.

71. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

72. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

73. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

74. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched.

75. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Sharon Sterling demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 12, 2014

By: _____

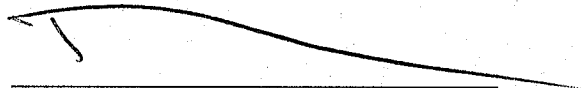
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 12, 2014



DAVID M. HAZAN